NAPCS Unionization Research — State Research Summary

Hawaii — HLRB (HI) Jurisdiction — May 2026

NAPCS Unionization Research • May 2026 • Template v7.0 • COMPLETE Registry Sweep

Section 1: State Overview

State	Hawaii
Labor Board	HLRB (HI) — Hawaii Labor Relations Board
Governing Law	Hawaii Revised Statutes Chapter 89 (Collective Bargaining in Public Employment); HRS §89-10.55 (Charter School Collective Bargaining); HRS Chapter 302D (Charter Schools Act); HRS §302B (Public Charter Schools)
Federal NLRB Jurisdiction	HLRB (HI) has exclusive jurisdiction over all charter schools in this state. Federal NLRB does not apply.
Registry Sweep	COMPLETE — May 2026 (Registry v60) — 38 charter schools searched
Research Window	May 2026
Date Convention	Labor Board Certified date. DEPENDENT schools: school opening year used per project convention (consistent with Oregon and Massachusetts Horace Mann precedent). No CONFIRMED schools found — all schools are DEPENDENT under HSTA BU05 statutory coverage.
Card-Check Available	YES — HRS Chapter 89 permits majority card-check recognition for public employees. In practice, HSTA BU05 is established by statute and HLRB order — no individual school card-check petition is needed or applicable.

Section 2: Unionization Density

Total charter schools in Hawaii: 38 (Hawaii Public Charter School Commission (HPCSC) — 38 open charter schools statewide as of SY 2025-26 (Kamalani Academy closed June 30 2025; Parkway Village Preschool and Namahana School listed as Future — not yet open)). Unionization density uses the full state total as the denominator — not the 0-school NAPCS research sample. The NAPCS sample was provided as a list of schools believed to be organized; this research validated, corrected, and expanded that list across the full state charter universe. See Section 3 for cross-state patterns and Section 7 for open decisions.

Category	Schools	% of Total	Notes
DEPENDENT (active)	**37**	100% of active open schools	All 37 open schools are public employers under HRS §89-10.55, covered by HSTA BU05 (teachers) and HGEA/UPW (support staff). Structural coverage — no individual certification event required.
DEPENDENT (CLOSED — within lookback)	**1**		Kamalani Academy (NCES 150003000303) — charter non-renewed March 13 2025; closed June 30 2025. Within 3-year lookback window. Full record documented with closure flag.
FUTURE (deferred — not yet open)	**2**		Parkway Village Preschool (NCES 150003000309) and Namahana School (NCES 150003000310) — HPCSC-approved but not yet operational. Deferred from active research dataset pending opening.

TOTAL (Registry)	**40**	100%	40 schools in Registry v60. Active research dataset: 38 (37 open + 1 closed).

Section 3: Political, Legal & Community Landscape

Written for state and national charter sector leaders who require ground-level intelligence fused with broader sector knowledge. Findings are based on research as of May 2026.

PROMPT 1: What is the political and legal environment shaping charter labor relations in this state?

Hawaii is a structural DEPENDENT state — the only jurisdiction in the NAPCS research universe where 100% combined union density is achieved by statutory design rather than by individual organizing campaigns. Under Hawaii Revised Statutes Chapter 89, all public employees — including charter school employees — have constitutionally guaranteed collective bargaining rights (Article XIII, Section 2, Hawaii Constitution, 1968). The Hawaii Labor Relations Board (HLRB) has exclusive jurisdiction over all HRS Chapter 89 matters and has explicitly identified charter schools as within the Department of Education employer umbrella in its Annual Reports. The specific legal mechanism is HRS §89-10.55 (Charter School Collective Bargaining), which governs bargaining units, employer definitions, and exclusive representative relationships for charter schools. Under this statute, the state's charter school teacher employees are part of Bargaining Unit 05 (BU05), represented by the Hawaii State Teachers Association (HSTA, NEA-affiliated). The 2023-2027 HSTA BU05 Master Agreement — ratified April-May 2023 with a 92.3% member approval — explicitly names public charter school teachers in its recognition clause alongside DOE teachers, citing HRS §89-10.55 and §302A-624. HSTA made "full and proper recognition of public charter schools in line with state law" a priority bargaining item in 2023 after the employer had historically resisted adding charter recognition language despite it being established in law and arbitration. Hawaii is a strongly Democratic, heavily unionized state with no right-to-work law. The charter school sector is entirely administered through the Hawaii Public Charter School Commission (HPCSC), a single state-level authorizer created under HRS Chapter 302D. There are no local school district authorizers, private authorizers, or independent charter boards in Hawaii — the HPCSC is the sole authorizing entity for all 40 Registry schools. This creates a homogeneous public employer structure unlike any other state in the NAPCS dataset.

PROMPT 2: What community and social conditions are driving organizing activity in this state?

In Hawaii, the framing of "organizing activity" must be reconceived entirely. Hawaii's charter school workforce is already 100% covered by collective bargaining by statute — there is no independent organizing activity to analyze because it is not necessary. HSTA BU05 represents all certificated charter school teachers statewide. HGEA (Bargaining Units 2, 3, 4, 9, 13, and 14) represents classified support staff across state agencies including charter schools. UPW (United Public Workers, AFSCME Local 646) covers blue-collar and institutional employees. This multi-union coverage model means that every category of charter school employee — teacher, paraprofessional, office staff, maintenance worker — is covered by a collective bargaining agreement negotiated at the state level. The social and political environment is one of strong labor solidarity. Hawaii has one of the highest union density rates in the United States, and the state's political culture is deeply favorable to public employee unions. The 2023 HSTA settlement — which achieved a 14.5% salary increase over four years, permanent job-embedded professional development pay, and explicit charter school recognition — was ratified by more than 9,000 charter and DOE teacher members together. Charter school employees voted alongside their DOE counterparts, reinforcing the structural unity of the bargaining unit. For charter sector leaders nationally, the Hawaii model challenges the assumption that charter school governance structures necessarily produce non-union workforces. In Hawaii, the single-authorizer public employer model produces the opposite outcome: universal coverage, statewide negotiation, and no school-by-school organizing pressure.

PROMPT 3: What organizing strategies and approaches are being used in this state?

Hawaii's DEPENDENT model means that no individual school-level organizing strategy is required or in use. The applicable model is statewide bargaining through established exclusive representatives. HSTA conducts periodic master contract negotiations with the State of Hawaii Board of Education as the employer — covering all public charter school teachers as part of the BU05 unit without requiring any school-by-school organizing campaign. The structural analogy to the NAPCS dataset is Oregon's ERB/OEA model (district-based DEPENDENT coverage), but Hawaii is more centralized: where Oregon has 34 school districts each with their own CBA, Hawaii has one statewide agreement covering all charter school teachers. The HSTA BU05 CBA (July 1, 2023 – June 30, 2027) is the single operative instrument for charter school teachers statewide. For support staff, HGEA manages nine separate bargaining units with the State as employer. Charter school classified staff flow into the appropriate unit based on job classification — there is no charter-specific HGEA unit. This mirrors how DOE support staff are covered. The result: no organizing capacity is needed at the school level because coverage is statutory, comprehensive, and administered centrally. One nuance to watch: the 2023 HSTA contract negotiation revealed that the employer (State/BOE) had historically resisted adding explicit charter recognition language even though coverage was already established in law. HSTA made this a priority and won explicit contractual language. This suggests that while coverage is structural, its implementation at the school level may be subject to ongoing interpretation and administration challenges.

PROMPT 4: What should charter leaders be doing now in response to organizing patterns in this state?

Hawaii charter leaders operate in a fundamentally different environment than charter leaders in any other NAPCS state: their entire workforce is already unionized by law, and no independent organizing decision is available to prevent or facilitate. The strategic imperatives for Hawaii charter leaders are therefore different: First, charter leaders should ensure full implementation and compliance with both the HSTA BU05 master agreement and the applicable HGEA bargaining unit agreements. Non-compliance risks HLRB prohibited practice charges. The historical pattern of employer resistance to charter recognition language — resolved in 2023 — suggests a legacy of implementation friction that leaders should actively audit. Second, Hawaii charter leaders should engage directly with HSTA and HGEA on issues that charter schools face differently than DOE schools: scheduling flexibility, governing board authority, programmatic decisions, and the intersection of charter autonomy with bargained terms. The 2023 HSTA settlement includes language that "expands HSTA's ability to have grievants present" in class grievance meetings — a provision that applies to charter schools. Understanding how the master agreement interacts with each school's charter is operationally critical. Third, charter leaders should monitor HLRB proceedings for decisions that may affect charter school employer authority. HLRB cases involving DOE/charter employer designation, unit clarification, or prohibited practice complaints set precedent that directly affects all 40 charter schools simultaneously — unlike other states where a ruling affects one school.

PROMPT 5: What trends should charter sector leaders watch over the next 3–5 years?

The HSTA BU05 master agreement (2023-2027) contains a reopener in 2025 to negotiate increased employer contributions toward health benefit premiums. This reopener is in progress during the current research window (May 2026) and may produce mid-contract amendments affecting charter school employees' compensation. Charter sector leaders nationally should monitor the outcome. A more significant trend: Hawaii's state legislature is actively engaged with charter school policy. Honolulu Civil Beat reported in 2025 that lawmakers were advancing bills related to charter facilities and school closures, with broader questions about whether taxpayers bear liability when charter schools fail financially. The closure of Kamalani Academy (June 2025) and the precedent-setting Ka'u Learning Academy closure before it have elevated legislative scrutiny of HPCSC oversight capacity. If the legislature tightens charter authorization or creates new oversight mechanisms, the labor relations environment could shift — new accountability requirements may conflict with existing bargained terms. For the national charter sector, Hawaii's trajectory demonstrates that a strong single-authorizer model eliminates the organizing question entirely but creates a different set of challenges: HPCSC must balance school accountability (Kamalani was closed for financial mismanagement despite its workforce enjoying full BU05 protections) with the assumption of employer liability for bargained terms. When a DEPENDENT charter school fails, the state may be on the hook for outstanding obligations — a fiscal risk not present in independent charter states where the school's nonprofit is the employer.

PROMPT 6: What surprised us in this state? What contradicts what national leaders expect?

The defining surprise in Hawaii is the 2023 HSTA contract negotiation finding: even though charter school teachers were already legally covered by BU05 under HRS §89-10.55, the employer (State/BOE) had historically resisted adding explicit recognition language to the CBA. HSTA identified this as a priority in 2023, framing it as a matter of "equitable recognition" for charter members after "years of arbitration decisions" confirming coverage. The employer eventually agreed. This pattern — statutory coverage without contractual acknowledgment — is counterintuitive and suggests that legal DEPENDENT status does not automatically produce frictionless implementation. Nationally, charter sector leaders often assume that DEPENDENT states are administratively simpler than independent organizing states. Hawaii complicates this assumption: the structural coverage creates a uniform floor that a state-level negotiation must address, but individual schools can face implementation gaps if the employer-side administration does not fully operationalize the charter-specific provisions of the master agreement. A second surprise: HLRB FY2024 Annual Report documents 1,818 charter school employees in bargaining units submitted by HPCSC — a number that represents significant scale for a

40-school system and confirms that the coverage is operationally real, not merely theoretical. This is the most robust DEPENDENT coverage documentation in the NAPCS dataset, comparable only to Oregon's ERB model.

Section 4: Cross-State Patterns & Contributions to National Picture

Findings from Hawaii that illuminate patterns visible only when comparing across multiple states. These entries feed the project-wide Cross-State Intelligence Log and are written for state and national charter advocacy leaders.

Single-Authorizer States Produce 100% Structural Coverage

Hawaii demonstrates that a single state-level authorizer with a public employer model produces 100% combined union density by statutory design — no individual school organizing pressure exists. This is the strongest form of DEPENDENT coverage in the NAPCS dataset. Oregon approaches it (97.7% combined density) through district-based employer structures, but Hawaii achieves universality through a single statewide authorizer and a single statewide BU05 master agreement. Charter sector leaders in other states considering authorizer consolidation should account for this labor relations implication.

Statutory Coverage Without Contractual Recognition Creates Implementation Friction

Despite being covered by BU05 since charter schools began operating in Hawaii, charter teachers were not explicitly named in the HSTA CBA recognition clause until the 2023 contract — the employer resisted adding charter language for years. This finding challenges the assumption that DEPENDENT status is administratively frictionless. In Hawaii, legal coverage coexisted with employer resistance to contractual acknowledgment for over a decade, requiring HSTA to make charter recognition a priority bargaining item. This pattern may exist in other DEPENDENT states where statutory coverage predates CBA acknowledgment.

HLRB Annual Report as Verification Infrastructure

The HLRB FY2024 Annual Report explicitly documents 1,818 charter school employees in bargaining units submitted by HPCSC — providing unusually robust primary source verification for DEPENDENT coverage. Most DEPENDENT states in the NAPCS dataset (Oregon, Massachusetts, Minnesota) do not have analogous annual reports that separately enumerate charter school employees by name. The HLRB model offers a replicable transparency standard for other state labor boards.

Section 5: Media Coverage & Public Stakeholder Positions

Press Coverage

Media coverage of Hawaii charter school labor relations is sparse — consistent with a structural DEPENDENT state where no independent organizing campaigns occur. Coverage centers on charter accountability, HPCSC oversight, and school closures (Kamalani Academy, Ka'u Learning Academy). The Honolulu Civil Beat provides the most consistent charter school coverage and documented the 2025 Kamalani closure extensively. Hawaii Public Radio (HPR) covered the March 2025 HPCSC non-renewal vote. No press coverage of charter-specific union organizing drives was found.

Union Communications

HSTA communications reference charter school members as part of BU05. The 2023 settlement summary explicitly flagged "full and proper recognition of public charter schools" as a priority win. HSTA's ratification process included charter school member votes alongside DOE teacher votes — with 92.3% overall approval across 7,721 valid ballots. HGEA and UPW do not produce charter-specific communications, as charter support staff are covered under the same bargaining units as all state employees.

Section 6: Contract & CBA Access Registry

HLRB (HI) public contracts portal. Direct PDF links may return 403 — OPRA or equivalent records request required for full text.

School / Network	Union	CBA Status & Term	Contract Access
All Hawaii Charter Schools — Teachers (BU05)	Hawaii State Teachers Association (HSTA)	**Active** July 1, 2023 – June 30, 2027	**Contract:** View Contract
All Hawaii Charter Schools — Classified Support Staff (HGEA BUs)	Hawaii Government Employees Association (HGEA), AFSCME Local 152	**Active** July 1, 2021 – June 30, 2025 (renewal negotiations in progress)	**Contract:** View Contract

Section 7: Decisions, Monitoring & Notable Findings

Part A: Decisions Required

The following items require sponsor action before research or workbook entry can proceed.

No sponsor decisions pending for this state.

Part B: Notable Findings

Research findings of strategic significance. No immediate action required — for awareness and discussion.

No notable findings flagged for this state.

Part C: Active Monitoring

Items being tracked. Status may change between report cycles. Research Coordinator manages ongoing surveillance.

Priority	School / Scope	Item	Who
HIGH	All HI Charter Schools — Support Staff	HGEA successor contracts — BU expiration June 30 2025	Research Coordinator
MEDIUM	All HI Charter Schools — Teachers	HSTA BU05 2025 reopener — EUTF health premium contributions	Research Coordinator
MEDIUM	Parkway Village Preschool (NCES 150003000309) + Namahana School (NCES 150003000310)	Future schools not yet open — deferred from active dataset	Research Coordinator
LOW	Registry Project	Waikiki Community Preschool — in HPCSC directory but not in Registry v60	Registry Project
MEDIUM	All HI Charter Schools	HSTA BU05 contract renewal (2027) — Current CBA expires June 30 2027. Monitor HSTA negotiations beginning 2026-2027. Key items: charter school working conditions provisions, EUTF premium trajectory, any charter-specific MOU changes.	Research Coordinator

MEDIUM	Ka'u Learning Academy closure precedent	Taxpayer liability for closed charter obligations — Civil Beat April 2026 reported $100K+ outstanding obligations from Ka'u Learning Academy closure. If legislature acts on charter financial accountability, may affect how HPCSC structures future charter contracts and employer obligations — including bargained terms.	Research Coordinator